
Journal

1991 SCMR 681

Court

Date

1990-12-06

Appeal No.

NO. 542 OF 1990

Judge

NASIM HASAN SHAH, ACTG. CJ., SHAFIUR RAHMAN, S. USMAN ALI SHAH AND ALI HUSSAIN QAZILBASH

Parties

MASOOD AHMAD MALIK (PETITIONER) VERSUS MST. FOUZIA FARHANA QUDDUS AND OTHERS (RESPONDENTS)

Lawyers

RAJA MUHAMMAD AKRAM, ADVOCATE SUPREME COURT AND EJAZ MUHAMMAD KHAN, ADVOCATE-ON-RECORD FOR PETITIONER. AHMAD RAZA KHAN, ADVOCATE SUPREME COURT AND CH. AKHTAR ALI, ADVOCATE-ON-RECORD FOR RESPONDENTS.

Statutes

MUSLIM FAMILY LAWS ORDINANCE (VIII OF 1961) - S. 1(2) WEST PAKISTAN FAMILY COURTS ACT (XXXV OF 1964) - S.5 MUSLIM FAMILY LAWS ORDINANCE (VIII OF 1961) - S. 2(1) CIVIL PROCEDURE CODE (V OF 1908) - S.20

Judgment

NASIM HASAN SHAH, ACTG. CJ.-Petitioner and respondent No. 1 were originally Pakistani nationals but had gone to the U.S.A.

and got settled there and acquired American citizenship. In August, 1985, the petitioner and respondent No.1 got married in U.S.

The "nikah" took place in accordance with Muslim rites and was performed in the Islamic Centre Washington by a Muslim Nikah Khawan duly appointed by U.S. Government for this purpose. In 1986, the petitioner came to Pakistan on contract with the U.SAID. Respondent No.1, in the meanwhile, having acquired American citizenship as wife of the petitioner also joined him in Pakistan. However, the marriage unfortunately did not succeed and on 23-2-1988 the petitioner pronounced. Talaq on respondent No.1 in accordance with the Muslim Law. The "talaqnama" was then sent to respondent No.1 and the petitioner also initiated proceedings under Muslim Family Laws Ordinance for finalisation of the divorce.

However, the Chairman Arbitration Council Islamabad accepted the objection of respondent No.1 that the parties having become American citizens, Muslim Family Laws Ordinance was not attracted and he had no jurisdiction to effect reconciliation between the parties. The petitioner thereupon filed a suit before the Senior Civil Judge, Islamabad exercising the powers of the Judge, Family Court for jactitation of marriage and alternatively for declaration to the effect that the petitioner and respondent No.1 are no longer husband and wife after the Talaq dated 23-2-1988 became final. Respondent No.1 prayed that the plaint be rejected on the ground that the Pakistani Courts had no jurisdiction to entertain and adjudicate upon the suit on the ground that the parties being American citizens and were merely on temporary duty in Pakistan and that the Muslim Family Laws Ordinance, 1961 was not applicable to their case. Her application for dismissal of the suit on this preliminary objection was rejected by the learned Trial Court by order dated 19-2-1989 holding that - (a) parties are Muslim and their marriage was solemnized at Washington, U.S.A. in accordance with Muslim rites; (b) the respondent pronounced Talaq at Islamabad and cause of action arose here; and (c) both the parties, for the time being, resided at Islamabad and were within the jurisdiction of his Court" The learned District Judge dismissed the appeal of respondent No.1 by order dated 21-11-1989. Thereafter, respondent No.1 filed a writ petition in the Lahore High Court Rawalpindi Bench.

The learned Judge of the High Court, who heard this petition, however, by judgment dated 3-9-1990 accepted the writ petition and held that neither the Civil Court nor the Family Court Islamabad had the jurisdiction to entertain and try the suit of the petitioner since the parties are not Pakistani Nationals (being American citizens) and the Family Laws Ordinance, 1961 does not apply and hence suit for jactitation for marriage which is an exclusive subject of the Family Courts, did not lie. It was further held that the ordinary Civil Courts will also did not have the jurisdiction to entertain the suit in view of the overriding effect of Muslim Family Laws Ordinance, 1961 by virtue of section 3 read with section 5 of the Family Courts Act, 1964. The relevant observations of the learned Judge are reproduced below:-- "Impediment is the provisions of section 1(2) of the Muslim Family Laws Ordinance which makes this Ordinance applicable only to Muslim citizens of Pakistan wherever they may be, that is to say, whether they are residing in Pakistan or in some foreign country. In the instant case, the parties, though Muslim, are not citizens of Pakistan. Therefore, this law was not applicable to them and the respondent was not competent to pronounce Talaq or divorce on the petitioner in accordance with its provisions nor he could send a notice of Talaq to the Chairman of the Local Council for the constitution of Arbitration Council." It was further observed - The Senior Civil Judge/Judge, Family Court, Islamabad, may have jurisdiction under the principle of lex fori or lex domicili but he has no

jurisdiction in view of the overriding effect of Muslim Family Laws Ordinance, 1961 by virtue of section 3 read with section 5 of the West Pakistan Family Courts Act, 1964. The suit for the jactitation of marriage brought by the respondent against the petitioner directly emanates from the fact of his pronouncing Talaq under the Muslim Family Laws Ordinance, 1961 and if that law is not applicable to the parties, the respondent obviously cannot enforce his Talaq through that Court neither by means of a suit for jactitation of marriage, nor through a suit for declaration." Hence this petition seeking leave to appeal against the aforesaid judgment of the High Court.

After hearing the learned counsel for the petitioner it appeared prima facie to this Court that the High Court's decision that the Family Court did not have jurisdiction was not correct in law, accordingly, a notice was issued to respondent No.1 why this petition be not converted into an appeal and allowed and the case remanded to the competent Court for decision on merits? Learned counsel for the petitioner, Raja Muhammad Akram and that of respondent No.1, Mr. Ahmad Raza Kasuri, have been heard at full length.

The main consideration which prevailed with the High Court for holding that the Senior Civil Judge/Judge, Family Court, Islamabad, cannot exercise the jurisdiction in the matter was that the Muslim Family Laws Ordinance, 1961, by virtue of Section 3 read with section 5 of the West Pakistan Family Courts Act, 1964, had overriding effect and as the suit for the jactitation of marriage brought by the petitioner emanated directly from the fact of his pronouncing talaq under the Muslim Family Laws Ordinance, 1961, the Family Court could not enforce his talaq either by means of a suit for jactitation of marriage or through a suit for declaration as the said law was not applicable to the parties.

We are not inclined to share this view.

The scope and amplitude of the Muslim Family Laws Ordinance, 1961 is given in section 1(2) in the following terms:-- It (Muslim Family Laws Ordinance) extends to the whole of Pakistan, and applies to all Muslim Citizens of Pakistan wherever they may be." (Underlining is ours) While the question of jurisdiction of the Family Court is dealt with under section 5 of the Family Courts Act, 1964, as follows:- "5. Subject to provisions of the Muslim Family Laws Ordinance, 1961, and the Conciliation Courts Ordinance, 1961, the Family Courts shall have exclusive jurisdiction to entertain, hear and adjudicate upon matters specified in the Schedule".

The Schedule provides as follows:- "SCHEDULE (See section 5 supra) 1. Dissolution of marriage 2. Dower.

4. Restitution of Conjugal rights.

5. Custody of children.

6. Guardianship.

7. Jactitation of marriage." The High Court, as stated already, has taken the view that the Family Court was precluded from exercising jurisdiction in the matter because even though it had the exclusive jurisdiction to entertain suits relating, inter alia, to jactitation of marriage under section 5 of the Act, this jurisdiction was subject to the provisions of the Muslim Family Laws Ordinance, 1961. But since the provisions of this Ordinance were applicable only to all Muslim citizens of Pakistan and because this condition was not satisfied in the instant case (the parties not being citizens of Pakistan) the Family Court could not entertain the suit. The view taken by the High Court, therefore, seems to have been formed on account of the words "subject to the provisions of the Family Laws Ordinance, 1961" employed in section 5 of the Family Courts Act, 1964 and it

is these words that have led the High Court to think that jurisdiction under the said Act can be exercised only in a case where the parties are "Muslim citizens of Pakistan" and in no other case. This view does not appear to be correct.

A close examination of the provisions of the Family Courts Act, 1964 and those of the Muslim Family Laws Ordinance, 1961 shows that they do not operate exactly in the same field and that the scope of the Family Courts Act, 1964 is wider than that of the Muslim Family Laws Ordinance, 1961. In our view, the affect of the words in section 5 that the Family Courts shall have the jurisdiction to entertain suits relating to dissolution of marriage, jactitation of marriage etc. but subject to the provisions of the Muslim Family Laws Ordinance, 1961 imply only that where there is an inconsistency between Muslim Family Laws Ordinance, 1961 and the Family Courts Act, 1964, the provisions of the Muslim Family Laws Ordinance wiH prevail and shall be given effect to in their pristine form and no more. They do not have any other effect and the provisions of other laws are not affected thereby. Accordingly, suits of this nature filed by the parties other than Muslim citizens of Pakistan if otherwise competent under any other law can be entertained but will be heard and tried not in accordance with the provisions of the Muslim Family Laws Ordinance but by the proper law applicable to them. Thus, under the Civil Procedure Code, 1908 a Civil Court has jurisdiction to entertain and try a suit if the parties, at the commencement of the suit, are residing within its local limits (section 20, C.P.C.).

Accordingly, any party irrespective of the question whether he is a Muslim citizen of Pakistan or sot can institute a suit, including a suit for jactitation of marriage, before a Court within whose local limits the defendant is, for the time being residing. If the parties are Muslim citizens of Pakistan, the suit will be tried and determined in accordance with the provisions of the Muslim Family Laws Ordinance, 1961. But if they are not Muslim Citizens of Pakistan the suit can still be entertained but it will be tried and determined by the proper law of the parties; in the former case by the Family Court while in the later case by the ordinary Civil Court of competent jurisdiction.

In the case in hand, both the parties are residing within the local limits of the jurisdiction of the Senior Civil Judge, Islamabad, since September 1, 1968. The talaq was pronounced at Islamabad on 23-2-1988 and the parties continue to reside at Islamabad, the cause of action, prima facie, also arose in Islamabad. Hence the Senior Civil Judge, Islamabad, did have the jurisdiction to entertain and try the suit. Undoubtedly, he has been referred to in the proceedings below as the Family Court but this is because he was also "exercising powers of Judge Family Court" for the purposes of the Family Courts Act, 1964. But this did not preclude him from entertaining a suit of jactitation of marriage arising within the local limits of his jurisdiction, to which the provisions of the Muslim Family Laws Ordinance, 1961 do no apply. Even though, in this case, some misdescription has occurred in the title of the Court in which the proceedings were instituted but such misdescription will not deprive the said Court from exercising the jurisdiction which he otherwise actually possesses (see Piao Gul v. The State PLD 1960 SC 307).

The upshot of this discussion is that the order of the High Court dated 3-9-1990 that the Court of the Senior Civil Judge/Judge, Family Court, Islamabad, has no jurisdiction to try the suit of the petitioner is erroneous in law and his order rejecting the plaint is, accordingly, set aside. The case is remanded back to the learned Senior Civil Judge, Islamabad for trial and adjudication on merits. The provisions of the Muslim Family Laws Ordinance, 1961 will undoubtedly not apply in the determination of the suit and the suit will be heard and adjudicated upon by the proper law of the parties. As to what the proper law applicable to the parties will be, shall be decided by the learned Trial Court by reference to the principles of "Conflict of Laws" (also called Private International Law). Considerable guidance on this question is available from this Court's judgments in the cases of Syed Ali Nawaz Gardezi v. Lt.-Col.Muhammad Yusuf PLD 1963 S.C.

51 at page 65 and Mrs. Marina Jatoi v. Nuruddin K. Jatoi and another PLD 1967 S.C. 580 at page 599.

Resultantly, this petition is converted into an appeal and allowed. Costs of this appeal shall be the costs in the cause.

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